

Makhan Lal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 7 January 2021 · WRIT - C No. 21948 of 2020 · **Writ dismissed; relegated to Clause 6.14 installment remedy**

HEADNOTE

Writ seeking quashing of a recovery certificate, Clause 6.5 bill correction, and easy installments is dismissed because Clause 6.14 of the U.P. Electricity Supply Code, 2005 affords an alternative remedy; the licensee is to consider the grievance and issue appropriate directions.

FACTUAL SUMMARY

Makhan Lal challenged a recovery certificate dated 21 January 2020 issued by the District Magistrate, Mainpuri, seeking its quashing, correction of a disputed electricity bill under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and permission to pay in easy installments. His counsel disputed the amount in the recovery citation. Counsel for the respondent-Corporation submitted that Clause 6.14 of the Code gave an alternative remedy before respondent No. 2, who would consider the grievance and issue appropriate directions.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility as alternative to writ

HOLDING

A writ seeking certiorari against a recovery certificate, mandamus to correct a disputed bill under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and permission to pay in easy installments is not maintainable where Clause 6.14 of the Code affords an alternative remedy before the licensee, who is to consider the consumer's grievance and issue appropriate directions. The petition is dismissed. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14

The Court dismissed the writ, including the prayer for easy installments and the challenge to the recovery citation, because Clause 6.14 gives the consumer an alternative remedy before the licensee, who is to consider the grievance. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE DATED 21.01.2020 WAS LIABLE TO BE QUASHED

Writ dismissed on alternative remedy; the citation was not examined on merits. ¶ 1

NOT DECIDED — CORRECTION OF THE DISPUTED BILL UNDER CLAUSE 6.5

The prayer for Clause 6.5 correction was not decided; the Court relegated the petitioner only to Clause 6.14. ¶ 1